



This apartheid-era sign on a bench in Cape Town, South Africa, is a poignant reminder of the racial segregation that existed in every public place in apartheid South Africa.

Apartheid and international human rights

A National Party government came to power in South Africa in 1948, pledging to establish apartheid (“separateness”) laws in the country. The same year, South Africa abstained in the UDHR vote because Article 2 explicitly stated that everyone is entitled to all of its rights, regardless of race. In the years that followed, South Africa enacted laws, such as the 1950 Population Registration Act, that explicitly discriminated against people on the basis of their race.

After decolonization in the 1960s, newly independent African and Asian states spearheaded the

drafting of the 1965 Convention on the Elimination of All Forms of Racial Discrimination. During the 1970s, the issue of apartheid in South Africa regularly came before the UN Commission on Human Rights and the UN General Assembly. Eventually, president F. W. de Klerk was compelled by a combination of trade and cultural sanctions and internal opposition to release African National Congress leader Nelson Mandela from prison in 1990. And between then and 1994, the government scrapped the apartheid laws.

moral principles independent of the laws of any nation. The UDHR preamble states that human rights are necessary to protect “the dignity and worth of the human person.” Article 2 of the UDHR makes this concrete, stating that “everyone is entitled to all the rights and freedoms set forth in this Declaration without distinction of any kind.”

In 1949, Hannah Arendt, a German-American philosopher and political theorist, and herself a stateless refugee from Nazi

Germany but also highly skeptical of the UDHR, succinctly summed this up when she wrote, “The right to have rights, or the right of every individual to belong to humanity, should be guaranteed by humanity itself.” Some other provisions in the UDHR also aimed to protect the right to have rights. Article 28 talks about “entitlement to a social and international order in which the rights and freedoms set forth in this Declaration can be fully realized,” while Article 30 makes it clear that no states or individuals should engage in activities aimed at the destruction of any of the rights and freedoms set out in the Declaration.

Article 3 states that everyone has the right to life, liberty, and security of person, while Articles 4 and 5 focus on the prohibition of slavery and torture respectively. Articles 6 to 11 concern legal

rights governing the way a person is treated by courts and criminal justice systems. The UDHR also includes the right to own property (in Article 17), the right to an education (Article 26), and the right to seek political asylum (Article 14).

Indivisibility

Many analysts distinguish between first- and second-generation human rights. The former relate to liberty and political expression. Sometimes called natural rights, they include the rights to life, freedom of speech, »



Article 9 states that “no one should be subject to arbitrary arrest or detention,” such as dissidents who are locked up in psychiatric hospitals—as many were in the Soviet Union (USSR).

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To deny people their human rights is to challenge their very humanity.

Nelson Mandela

Address to the Joint Session of the US House of Congress, 1990

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